

Time Definite Dangerous Goods Authority Letter

To: DHL (being any company within the DHL Group trading under the 'DHL Express' brand involved in the transportation of Dangerous Goods in the circumstances described below) ("**DHL**").

Account Holder:

(Name and Address)

(**"Account Holder"**)

Export Account Number(s):

(see Paragraph 2.1)

Import Account Number(s):

(see Paragraph 2.1)

Third Country Account Number(s):

(see Paragraph 2.2)

Dangerous Goods Contact:

(Name/Email/Mobile phone number)

Approved for	Time Definite Dangerous Goods Services	Business Type		
		Export	Import	Import to Third Country
☐	HE, HK – Dangerous Goods requiring a Shipper's Declaration ¹	✓	✗	✗
☐	HD, HM, HV, HW – Lithium Batteries Complying with the Applicable Packing Instructions of Section II of the IATA DG Regulations Requiring a Battery Mark.	✓	✓	✓
☐	HA, HB – Sodium Ion Batteries Complying with the Applicable Packing Instructions of Section II of the IATA DG Regulations Requiring a Battery Mark.	✓	✓	✓
☐	HH – Dangerous Goods in Excepted Quantities.	✓	✓	✗
☐	HC – UN1845 Dry Ice/Carbon Dioxide, Solid.	✓	✓	✓
☐	HY – UN3373 Biological Substance, Category B.	✓	✓	✓
☐	HY – UN3245 Genetically Modified Organisms or Micro-Organisms.	✓	✓	✓

1. This Letter sets out the conditions upon which DHL accepts shipments containing dangerous goods or restricted commodities for transportation ("**Dangerous Goods**"), as this term is defined by reference to the latest edition of the ICAO Technical Instructions for the Safe Transportation of Dangerous Goods by Air and forming the basis for the IATA Dangerous Goods Regulations ("**IATA DG Regulations**"), the Agreement Concerning the International Carriage of Dangerous Goods by Road ("**ADR Regulations**"), and/or any other applicable regulation in the state or country of origin, transit or destination (together, the "**DG Regulations**"). In the event of a conflict between any provision of this Letter and a translation provided in a language other than English, the English version shall prevail.

¹ For shipments to or from a member state to which the ADR Regulations apply, the limits of ADR Limited Quantities are not to be exceeded. The ADR Regulations contain certain quantitative limits on the carriage of Dangerous Goods by road. As shipments may be subject to road transportation these restrictions also apply.

2. Subject to the Account Holder's continued compliance with the DG Regulations and the terms of this Letter, DHL acknowledges that:

- 2.1. the Account Holder may request that DHL transports Dangerous Goods on the Account Holder's behalf using the stated Export Account Number(s) and/or Import Account Number(s) (as applicable); and
- 2.2. an Account Holder with an Import Account Number may use such account number to request that DHL collects and transports Dangerous Goods: (i) from a third party and/or (ii) to a location different to the one where the Account Holder is based (in which case the Import Account Number will be treated as a "third country account"), provided that in each case the same are acceptable to DHL;

the Account Holder and/or such third party hereafter defined as the "**Shipper**", each with joint and several liability therefore.

3. The Account Holder and/or its shipping locations have been assessed by DHL in relation to its suitability for the transportation of Dangerous Goods, however the Account Holder acknowledges that DHL makes no representation or warranty as to the Account Holder's or its Shipper's compliance with, and the Account Holder is and remains wholly responsible for its obligations and that of its Shippers under, the DG Regulations.
4. DHL's '*Standard Terms and Conditions of Carriage*' or other specifically agreed contractual terms applicable to the DHL product or service used generally prohibit the transportation of Dangerous Goods. This Letter therefore supplements the conditions applicable to the carriage of Dangerous Goods and takes precedence in the event of any direct conflict in relation thereto. Responsibility and liability with respect to the correct preparation of Dangerous Goods for transportation remains with the Account Holder in accordance with the DG Regulations. The Account Holder confirms that it also remains responsible to DHL for compliance with and is liable for breaches of the DG Regulations where the Account Holder is permitted to and does specify the collection and transport of Dangerous Goods from another Shipper treated as a designated shipper by the DG Regulations. DHL shall advise the Account Holder of those countries where DHL is unable to ship Dangerous Goods through DHL's '*Account Approval System*' and the then current '*Global Capability List*'.
5. Both for itself and for and on behalf of any other Shipper, the Account Holder:
 - 5.1. agrees that: (i) it shall be wholly responsible for compliance with the DG Regulations, including but not limited to the requirement that all shipments be properly packaged and correctly prepared for transportation, and accompanied by the requisite paperwork; (ii) where limited quantity packaging is used, all such packaging shall have been tested according to the test requirements prescribed by the DG Regulations (and, in the case of actual or claimed breaches of the DG Regulations and where required by DHL, the Account Holder shall promptly provide documentation conclusively demonstrating that appropriate tests have been carried out); and (iii) DHL may without further liability reject the shipment of any goods at any point during transportation where any of the foregoing requirements have been breached;
 - 5.2. represents and warrants that all training required of relevant employees or agents in relation to the handling and transportation of Dangerous Goods has been provided and will be maintained, including but not limited to requisite certification and qualification, and that such personnel fully understand the requirements for the carriage of Dangerous Goods by air and road;
 - 5.3. agrees that, if requested, mandatory Dangerous Goods related training certificates will promptly be supplied as evidence that all relevant persons involved in and permitted to ship Dangerous Goods for or on its behalf are certified in accordance with the DG Regulations;
 - 5.4. agrees that if required by the DG Regulations or if otherwise requested by DHL, it shall procure the supply of an accurate and completed '*Shipper's Declaration*';
 - 5.5. understands that in certain circumstances lithium batteries have been identified as the cause of significant safety issues, including loss and/or damage to property and persons, and understands that sodium ion and lithium batteries which carry an excessive charge or that have suffered external damage may experience short circuiting or cause heat or fire, and are prohibited from being transported by air. The Account Holder shall ensure that it, its Shippers and all other relevant third parties conduct a suitable risk assessment and continue to issue current instructions with respect to the proper classification, identification, packaging, marking, labeling and accompanying documentation for such shipments; and
 - 5.6. shall: (i) prior to the date of this Letter have notified and thereafter shall advise DHL of the countries to and from which it anticipates that Dangerous Goods will require transportation; (ii) agree that DHL

shall not be required to transport and shall have no liability for any inability or refusal to transport Dangerous Goods to, from or through such countries.

6. In the event of any breach of the requirements agreed pursuant to the foregoing Paragraph 5 by the Account Holder or other Shipper (a **"Customer Failure"**), the Account Holder indemnifies and holds DHL harmless from all loss and liability arising therefrom and incurred by DHL including, but not limited to, loss, destruction, damage, death, injury, delay, fine, penalty, sanction, reasonable legal expenses and/or other loss caused, whether directly or indirectly, foreseeable or not, wholly or in part. This indemnity shall not apply in circumstances where: (i) DHL has wholly and exclusively caused a Customer Failure through DHL's own negligence; and (ii) there has been no contributory act, omission or failure on the part of the Account Holder and/or Shipper.
7. In the event of a Customer Failure, whether attributable to a significant event or series of repetitive breaches and in addition to any other right or remedy available to it, DHL may terminate this Letter and discontinue the transportation of Dangerous Goods: (i) immediately where, in DHL's reasonable opinion, such Customer Failure is a significant breach, consists of a series of repetitive breaches, or is incapable of remedy; and/or (ii) on giving not less than thirty (30) days' notice where such Customer Failure is capable of remedy but the Account Holder has failed to remedy the same in the manner and within the timeframe set out in such notice.
8. If the Account Holder has not shipped Dangerous Goods in the previous twelve (12) months, DHL shall upon prior notice withdraw the services hereunder, and the Account Holder's permission to tender Dangerous Goods for transportation. The Account Holder may reapply for re-approval at such later date if so required.

Signed by a duly authorized representative on behalf of the Account Holder, and for and on behalf of the Shipper:

Agreed by the Account Holder for itself, and
for and on behalf of another Shipper:

Authorized Signatory:

Position: _____

Printed Name: _____

Place: _____

Date: _____

For and on behalf of DHL Express:

Authorized Signatory:

Position: _____

Printed Name: _____

Place: _____

Date: _____